

**\*TENTATIVE RULING:\***

Defendants and Cross-Claimants filed a Motion for Mandatory Injunction on November 19, 2025. Since then, in a Case Management Conference Statement, Defendants have represented that “All Cross-Defendants have been defaulted and Plaintiff has indicated she will dismiss her case and will then be defaulted from the Cross-Complaint. Cross-Defendants are filing a Request for Court Judgment against the Defaulted Defendants.” The Court received no additional filings relating to this request. Given the procedural posture and recent representations, the Court believes it is highly likely the Mandatory Injunction is unnecessary and so will **deny** it as moot.

**10. 9:00 AM CASE NUMBER: C24-02882**  
**CASE NAME: HEATHER ABALOS VS. EDWARD HAMILTON**  
**\*HEARING ON MOTION IN RE: LEAVE TO FILE 1ST AMENDED COMPLAINT**  
**FILED BY: ABALOS, HEATHER**

**\*TENTATIVE RULING:\***

Before the Court is a motion for leave to file a second amended complaint (“Motion”, improperly designated as a motion for leave to file a first amended complaint), filed by plaintiff Heather Abalos (Plaintiff”). Plaintiff seeks to add a claim asserting unlawful noncompete agreements and seeks sanctions from the defendants for not stipulating to the filing of an amended complaint.

For the reasons discussed below, the Court GRANTS Plaintiff’s motion for leave to file a second amended complaint and DENIES the request for sanctions.

**Background**

On October 25, 2024, Plaintiff, a former employee of McCampbell Analytical, Inc., filed a putative class action against McCampbell Analytical, Inc. and Edward Hamilton (“Defendants”). The lawsuit asserted claims for: (1) failure to pay minimum wages; (2) failure to pay overtime wages; (3) failure to provide meal periods; (4) failure to provide rest periods; (5) failure to reimburse necessary business expenses; (7) illegal waiver of wages owed; and (8) violation of California Business & Professions Code §§ 17200, et seq. On February 3, 2025, Plaintiff filed a first amended complaint, which added a Private Attorney’s General Act (“PAGA”) claim, and sought penalties related to that.

With respect to the instant Motion, Plaintiff now seeks to add a claim relating to an alleged improper non-compete agreement. Plaintiff asserts that additional facts were discovered after further investigation and that they immediately sent an email to Defendants asking to stipulate to the filing of an additional amended complaint. Defendants were unwilling to so stipulate, thus Plaintiff filed the instant motion for leave to file a second amended complaint.

**Legal Standard for Motion for Leave to File an Amended Pleading**

Code of Civil Procedure section 473, subdivision (a)(1), provides the Court discretion to permit a party to amend its pleadings. There is “a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [citations]...” (*Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 487.) Leave to amend can be denied where there is “inexcusable

delay and probable prejudice to the opposing party’... [Citation.]” (*Ibid.*) “[I]t is a rare case in which ‘a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.’” (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530 quoting *Guidery v. Green* (1892) 95 Cal. 630, 633.)

“Generally, leave to amend must be liberally granted [Citation], provided there is no statute of limitations concern, nor any prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation.” (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448.)

A party opposing amendment must demonstrate that permitting the amendment will cause it to suffer prejudice. (*Rickley v. Goodfriend* (2013) 212 Cal.App.4th 1136, 1159; see also *Mesler v. Bragg Mgmt. Co.* (1985) 39 Cal.3d 290, 296-297.) “Motions to amend are appropriately granted as late as the first day of trial ... or even during trial ... if the defendant is alerted to the charges by the factual allegations, no matter how framed ... and the defendant will not be prejudiced.” (*Rickley*, 212 Cal.App.4th at 1159 quoting *Honig v. Financial Corp. of America* (1992) 6 Cal.App.4th 960, 965.)

## **Discussion**

### **Procedural Requirements**

A motion to amend a pleading must include a copy of the proposed amended pleading, serially numbered to differentiate it from previous pleadings, and it must state: (1) what if any allegations are proposed to be deleted; (2) what if any allegations are proposed to be added; and (3) where, by page, paragraph, and line number the allegations to be added or deleted are located. (Cal. Rules of Court, Rule 3.1324(a).) A motion to amend a pleading must include a separate declaration that specifies (1) the effect of the amendment, (2) why the amendment is necessary and proper, (3) when the facts giving rise to the amended allegations were discovered, and (4) why the request to amend was not made earlier. (Cal. Rules of Court, Rule 3.1324(b).)

Here, Plaintiff has included a redlined copy of the proposed second amended complaint (misabeled as the first amended complaint), which shows what they propose adding and deleting and where. (Notice of Errata re: Declaration of Navid Barahmand, Exh. A.) Plaintiff has also included a declaration that substantially complies with the requirement to specify the effect of the amendment (Barahmand Decl. ISO Motion, at ¶ 3), why the amendment is necessary and proper (*id.*, at ¶¶ 3-4), when the facts giving rise to the amended allegations were discovered (*id.*, at ¶ 4), and why the request was not made earlier (*id.*, at ¶¶ 3-4).

The Court notes that the redline provided by Plaintiff shows the changes between the original complaint and the proposed second amended complaint. Notably, the first amended complaint already has a PAGA claim and this is not reflected by the redline, which shows the differences between the original complaint and the proposed second amended complaint. However, Defendants state that “the PAGA claim” in the proposed second amended complaint does not have “any meaningful change from the version already alleged . . . in the First Amended Complaint filed on February 3, 2025,” so the Court will disregard this transgression.

### **Substantive Analysis**

Plaintiff asserts they discovered additional information on or around November 2025, that showed the ability to assert a new claim for illegal noncompete agreements. (Motion, p. 2.) The additional information was a non-compete agreement produced by Defendants in discovery, Bates Number MA0048. (Barahmand Decl. ISO Reply, ¶ 2, Exh. A.) Plaintiff asserts that they immediately reached out to counsel for Defendants in an attempt to stipulate to the filing of an amended complaint, but Defendants rejected the request. (Motion, p. 2; Barahmand Decl. ISO Motion, ¶ 4, Exh. C.)

Plaintiff argues that in light of the policy favoring amendments at any stage of a proceeding, the fact that they sought to file an amended complaint as soon as the additional information was discovered, and that there will be no prejudice to Defendants, the Court should grant the Motion for Leave to Amend. (Motion, pp. 3-5.) Plaintiff also seeks monetary sanctions by analogizing the situation here to *Ellis v. Roshei Corp.* (1983) 143 Cal.App.3d 642, 649.

Defendants oppose Plaintiff's motion for leave to amend by arguing that inexcusable delay and probable prejudice warrant denial of Plaintiff's Motion. (Opposition, p. 3.) Defendants cite *Estate of Murphy* (1978) 82 Cal. App. 3d 304, 311, for the proposition that inexcusable delay and probable prejudice can support denial of a motion for leave to amend. (*Ibid.*) Defendants argue that Plaintiff has not explained why they are adding claims at this late stage and has improperly failed to provide the factual and legal basis for the amendment. (*Id.*, at pp. 4-5.) Defendants further argue that the proposed amended complaint lacks sufficient detail, that the inexcusable delay and lack of diligence support denial, and that they will suffer prejudice from the new field of inquiry and that their ability to prepare an adequate defense will be compromised. (*Id.*, pp. 6-8.) Defendants further argue that there is no basis for them to be sanctioned. (*Id.*, pp. 8-12.)

On reply, Plaintiff identifies the document produced by Defendants that supports the request for leave to amend to add a claim for an improper non-compete agreement and asserts that there will be no prejudice here as there is still no trial date in this matter. (Reply, p. 1.)

With respect to Defendants' argument that Plaintiff has not explained why they are adding claims at this late stage and has improperly failed to provide the factual and legal basis for the amendment, the Court disagrees. Plaintiff learned of the non-compete agreement around the time they asked to stipulate to an amended pleading around November 2025. (Barahmond Decl. ISO Motion, ¶ 4, Exh. C.) The factual basis is the document produced by Defendants Bates stamped MA0048. (Barahmand Decl. ISO Reply, ¶ 2, Exh. A.) The legal basis is identified on the proposed amended complaint, California Business & Professions Code §§ 16600, 16600.1, 16600.5, and Labor Code section 432.5. (Notice of Errata re Barahmand Decl. ISO Motion, Exh. A.)

With respect to Defendants' argument that the proposed amended complaint lacks sufficient detail, courts generally do not consider the validity of proposed amendments to a pleading. (See *Kittredge Sports Co. v. Sup. Ct.* (1989) 213 Cal.App.3d 1045, 1048; *Atkinson v. Elk Corp.* (2006) 109 Cal.App.4th 739, 760 ["the better course of action would have been to allow ... [plaintiff] to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings."].) The Court will not deny the Motion on this basis.

With respect to the argument that Plaintiff inexcusably delayed, the Court finds this argument unavailing as Plaintiff sought to file an amended complaint as soon as they learned of the non-compete agreement, which was discovered after a document production of Defendants. (See

Barahmand Decl. ISO Motion, ¶ 4, Exh. C; Barahmand Decl. ISO Reply, ¶ 2, Exh. A.) Even if there was unreasonable delay, “it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.)

As to Defendants’ claim of prejudice, the Court notes that despite Defendants stating in the statement of facts that Plaintiff has already alleged a PAGA claim in the first amended complaint, the arguments in the Opposition regarding prejudice do not appear to acknowledge this. (Opposition, pp. 1, 7-9.) The Court finds that one additional cause of action relating to a non-compete agreement is not such a large endeavor so as to deny Defendants an opportunity to adequately prepare a defense, especially in light of there being no trial date set in this matter.

“[D]iscretion should be exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit.” (*Kittredge Sports Co. v. Sup. Ct.* (1989) 213 Cal. App. 3d 1045, 1047.) “The trial court has discretion to permit or deny the amendment of the complaint, but instances justifying the court’s denial of leave to amend are rare.” (*Armenta ex rel. City of Burbank v. Mueller Co.* (2006) 142 Cal.App.4th 636, 642.) The Court finds that this is not one of those rare instances where denial of leave to amend is justified.

Regarding Plaintiff’s request for sanctions, the Court denies this request as the *Ellis v. Roshei Corp.* (1983) 143 Cal.App.3d 642, cited by Plaintiff, is distinguishable from the instant matter before the Court. In *Ellis*, the sanctioned party wanted certain information to be included in the complaint, and the other side offered to include that information if the sanctioned party would stipulate to the filing of an amended complaint. The sanctioned party refused to so stipulate and filed a demurrer. Here, Defendants requested the factual basis for the new cause of action when considering to stipulate and it appears that Plaintiff did not provide that basis until they filed the Reply and Declaration in Support of the Reply. Further, this is not an instance of a party asking for something, being offered it, and then rejecting the offer and filing a motion for what was offered, as was the case in *Ellis*.

### **Ruling**

Plaintiff’s motion for leave to amend is GRANTED, but the request for sanctions is DENIED. The Court orders Plaintiff to file their proposed second amended complaint, properly captioned, within 10 calendar days of notice of entry of this order. Defendants’ response thereto shall be filed per code.

**11. 9:00 AM CASE NUMBER: C25-02371**  
**CASE NAME: BETTY KARRIS VS. JILL CHERNE**  
**\*HEARING ON MOTION IN RE: QUASH SUBPOENAS**  
**FILED BY: KARRIS, BETTY JEAN**  
**\*TENTATIVE RULING:\***

Plaintiff Betty Karris brings this Motion to Quash subpoenas by Harry Karris, who was initially appointed by the Court to be Plaintiff Betty Karris’s Guardian Ad Litem, although Defendant Jill Cherne has sought to set aside that appointment. The subpoenas are seeking information relating to Plaintiff’s financial information (through banks) and attorney-client information (through attorneys and law firms). The Court previously indicated that Harry Karris should step down and be replaced by